

Department of Labor and Employment

Office of New Americans (ONA)

REGULATIONS CONCERNING THE COLORADO REFUGEE SERVICES PROGRAM (CRSP)

7 CCR 1109-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.1. Program Summary

The Colorado Refugee Services Program (CRSP) is housed within the Office of New Americans (ONA) at the Colorado Department of Labor and Employment (CDLE). CRSP is responsible for the overall supervision and coordination of the refugee services program in Colorado, and for the development and supervision of the annual state plan for Colorado. CRSP operates under the Refugee Act of 1980 and Title IV of the Immigration and Nationality Act (INA), as amended.

CRSP serves eligible populations (see General Definitions in section 1.3) who are residents of Colorado for up to sixty (60) months after their date of entry into the United States or the date status was granted. These eligible populations are considered qualified non-citizens and are exempt from the five-year bar for public assistance, with exceptions. These populations may also access public assistance programs provided by the State of Colorado. CRSP services are primarily funded by the Office of Refugee Resettlement (ORR) housed within the U.S. Department of Health and Human Services' (HHS) Office of the Administration for Children and Families (ACF). CRSP's service model is delivered in alignment with 45 CFR 400.

If not eligible for the assistance of TANF/Colorado Works, individuals meeting a definition for ORR eligibility in section 1.4 below may be eligible for Refugee Cash Assistance (RCA) through CRSP if income and program eligibility criteria are met. Per 45 CFR § 400.56, Colorado operates a Public/Private RCA program, requiring individuals interested in applying for RCA to apply for those benefits at a local resettlement agency located in Colorado.

For Unaccompanied Refugee Minors (URM), CRSP may serve this population through the URM program until the youth turns twenty-one (21) years of age. If needed, a URM who is no longer in the URM program may receive ORR-funded services through CRSP for up to sixty (60) months after receiving a status that makes them eligible.

1.2. General Definitions

"45 CFR 400" refers to the part of the Code of Federal Regulations governing refugee resettlement programming and assistance.

“Household” means an individual adult, married individuals without children, or parents, or custodial relatives, with minor children who live in the same household.

“Lawful Permanent Resident” means a non-citizen legally admitted into the United States to reside on a permanent basis.

“Office of Refugee Resettlement” means the office within the U.S. Department of Health and Human Services authorized to manage federal assistance for the resettlement of refugees in the United States per the Refugee Act of 1980.

“Qualified non-citizen” means an individual who meets the specific definition of “qualified alien” as defined by the Personal Responsibility and Work Opportunity Reconciliation Act of 1996.

“Refugee Cash Assistance (RCA)” means cash assistance provided to ORR-eligible populations in accordance with Colorado’s State Plan for refugee resettlement.

“Refugee Medical Assistance (RMA)” means medical assistance provided to ORR-eligible populations in accordance with Colorado’s State Plan for refugee resettlement.

“Temporary Assistance for Needy Families (TANF) or Colorado Works (CW)” means the cash assistance program also known as Title IV-A of the Social Security Act.

“Verification” means confirmation of a household’s statements through written, verbal, or electronic means.

1.3. Office of Refugee Resettlement (ORR) Eligible Populations

1.3.1. The following categories of people are eligible for ORR-funded services.

- A. A “refugee” means the same as in 8 U.S.C. § 1101(a)(42) and accompanying notes to 8 U.S.C § 1101.
- B. An “asylee” is a person who has been granted asylum by the U.S. Citizenship and Immigration Service (USCIS) while residing in the United States. An asylee meets the same definition as a refugee and has been granted asylum status. Individuals admitted to the United States who are classified by USCIS as “applicants for asylum” are not eligible for CRSP benefits unless they are a Cuban or Haitian Entrant (refer to Sections 1.4.C and 1.5.C). Family members who obtain derivative status from an individual granted asylum are also eligible for both benefits and services.
- C. “Cuban and Haitian Entrants” are:
 - 1. Any individual granted parolee status by the U.S. Department of Homeland Security (DHS) as a Cuban/Haitian Entrant (status pending) or granted any other special status subsequently established under the

immigration laws for nationals of Cuba or Haiti, regardless of the status of the individual at the time assistance or services provided.

2. A national of Cuba or Haiti who was paroled into the United States and has not acquired any other status under the Immigration and Nationality Act (INA), and with respect to whom a final, nonappealable, and legally enforceable order of removal, deportation, or exclusion has not been entered.
 3. A national of Cuba or Haiti who is the subject of removal, deportation, or exclusion proceedings under the INA and with respect to whom a final, nonappealable, and legally enforceable order of removal, deportation, or exclusion has not been entered.
 4. A national of Cuba or Haiti who has an application for asylum pending with DHS, USCIS, or the U.S. Department of Justice (DOJ)/Executive Office for Immigration Review (EOIR) and with respect to whom a final, nonappealable, and legally enforceable order of removal, deportation, or exclusion has not been entered.
- D. “Certain Amerasians from Vietnam” are certain persons from Vietnam who:
1. Are admitted to the United States as immigrants and were born in Vietnam after January 1, 1962, and before January 1, 1976; and,
 2. Were fathered by a citizen of the United States.
- E. “Victims of Severe Forms of Trafficking” are persons who have been certified as such by the U.S. Department of Health and Human Services (HHS), and are eligible for benefits and services to the same extent as refugees. Eligible individuals may be adults or minors. Family members who obtain derivative status from the trafficked person are also eligible for both benefits and services.
- F. “Iraqi and Afghan Special Immigrant Visa Recipients” (SIVs) are Iraqi and Afghan citizens or nationals who have been employed by, or on behalf of, the U.S. military, or the U.S. government during hostilities in their countries. Eligible individuals have been admitted to the United States under a Special Immigrant Visa (SIV) due to a well-founded fear of remaining in their respective countries due to their employment with, or on behalf of the U.S. military or the U.S. government. Spouses and unmarried children under the age of 21 of principal SIVs may also be admitted under a Special Immigrant Visa and are considered ORR-eligible SIVs. Upon admission to the U.S., SIVs are granted Legal Permanent Residency (LPR or “green card”).
- G. “Afghan Humanitarian Parolee” (AHP) refers to Afghan citizens or nationals who:
1. Were paroled into the United States under section 212(d)(5) of the INA between July 31, 2021, and September 30, 2023; or,

2. Are a spouse or child of an individual described in section G.1 who is paroled into the United States after September 30, 2023; or,
 3. Are a parent or legal guardian of an individual described in section G.1 who is determined to be an unaccompanied child as defined by 6 U.S.C. § 279(g)(2), and is paroled into the United States after September 30, 2023.
- H. “Afghan Special Immigrant Parolee” refers to Afghan citizens or nationals who have been paroled in the United States under Public Law 117-43, § 2502 (Sept. 30, 2021) on or after July 31, 2021.
- I. “Afghan Special Immigrant Conditional Permanent Resident” refers to Afghan citizens or nationals who have been granted conditional permanent residency in the United States under Public Law 117-43, § 2502 (Sept. 30, 2021) on or after July 31, 2021.
- J. “Ukrainian humanitarian parolee (UHPs)” refers to Ukrainian citizens or nationals of Ukraine who:
1. Were paroled into the United States under section 212(d)(5) of the INA between February 24, 2022, and September 30, 2024; or,
 2. Are non-Ukrainian individuals who last habitually resided in Ukraine and who DHS has paroled into the United States between February 24, 2022, and September 30, 2024; or,
 3. Are a spouse or child of an individual described in section J.1 or J.2 who was paroled into the United States after September 30, 2023; or,
 4. Are a parent, legal guardian, or primary caregiver of an unaccompanied refugee minor or an unaccompanied child described in section J.1 or J.2 who was paroled into the United States after September 30, 2023.
- K. “Unaccompanied refugee minors” (URMs) are minors with eligible immigration statuses who do not have a parent or legal guardian to care for them in the United States. Refugee minors are identified overseas and are eligible for resettlement in the United States, but do not have a parent or a relative available who is committed to providing for the minor’s long-term care. Upon arrival in the United States, these refugee youth are placed into the URM program and receive refugee foster care services and benefits. Other eligible unaccompanied minors may enter the URM program if they have a qualifying immigration status and are approved by ORR for the URM program. These youth often arrive in the URM program through ORR shelters for unaccompanied minors.
- L. Lawful Permanent Residents (LPR or “green card”) who were granted a status outlined in this section prior to being granted legal permanent residency.

1.4. Verification of Status for ORR Eligibility

1.4.1. The following documents are acceptable for verification of eligibility for ORR-funded services and must be reviewed/verified prior to delivery of any ORR-funded services.

A. Acceptable documents for individuals admitted as refugees:

1. I-94 arrival/departure record noting admission under § 207 of the INA or one of the following admission codes: RE-1, RE-2, RE-3, RE-4, RE-5; or
2. Employment Authorization Document with codes A03 or A04; or
3. DHS form I-571; or
4. I-730 approval letter of refugee status; or
5. Visa 93 on the I-94 arrival/departure card, which may contain the words "Section 207".

B. Acceptable documents for individuals granted asylee status:

1. I-94 arrival/departure record noting § 208 of the INA or one of the following admission codes: AS-1, AS-2, AS-3; or
2. DHS form I-571; or
3. I-766 Employment Authorization Document with the code A05; or
4. An order of an Immigration Judge granting asylum under § 208 of the INA; or
5. An Asylum Approval Letter from a USCIS Asylum Office, noting § 208 of the INA; or
6. A written decision from the Board of Immigration Appeals (BIA) noting § 208 of the INA; or
7. I-730 Approval Letter; or
8. Visa 92 on the I-94 arrival/departure record, which may contain the words "Section 208"

C. Acceptable documentation for Cuban and Haitian Entrants:

1. I-94 arrival/departure record with a stamp showing parole at any time as a "Cuban/Haitian Entrant (Status Pending)," and may reference § 212(d)(5); or

2. I-94 arrival/departure record showing parole into the U.S. on or after April 21, 1980 (Cubans only) or on or after October 10, 1980 (both Cubans and Haitians), and may reference § 212(d)(5); or
3. A Cuban or Haitian passport with a stamp dated on or after October 10, 1980, referencing § 212(d)(5); or
4. I-94 arrival/departure record showing parole into the U.S. and referencing § 212(d)(5), or humanitarian or public interest parole; or
5. I-766 Employment Authorization Document with one of the following codes: A04, A10, C8, C10, C11; or
6. One of the following DHS forms issued to a Cuban or Haitian national: I-1221, I-862, I-220A, I-122, I-1221S; or
7. I-589 application for asylum and withholding of removal stamped by the Executive Office for Immigration Review (EOIR); or
8. I-485 application to register permanent residence stamped by EOIR; or
9. EOIR-26 notice of appeal from a Decision of an Immigration Judge, stamped by EOIR; or
10. Other applications for relief that have been date-stamped by EOIR; or
11. Other documentation pertaining to an applicant's removal, exclusion, or deportation proceedings.
 - a. There may be other possible documents presented by Cuban or Haitian Entrants, parolees, or asylum seekers. If you have questions regarding documents presented by Cuban or Haitian Entrants/parolees, you may call the Colorado Refugee Services office for additional information and guidance on eligibility determination.

D. Acceptable documentation for certain Amerasians:

1. I-94 arrival/departure record noting one of the following admission codes: AM-1, AM-2, AM-3; or
2. Form I-551, noting one of the following admission codes: AM-6, AM-7, AM-8; or
3. Vietnamese Exit Visa noting one of the following admission codes: AM-1, AM-2, AM-3, and may have a temporary I-551 stamp; or

4. Vietnamese passport noting one of the following admission codes: AM-1, AM-2, AM-3, and may have a temporary I-551 stamp; or,
 5. United States passport noting one of the following admission codes: AM-1, AM-2, AM-3.
- E. Acceptable documentation for Victims of a Severe form of Trafficking:
1. Certification letter, Eligibility Letter, or Interim Assistance Letter from the ACF Office on Trafficking in Persons (OTIP). Validity of the letter must be confirmed by calling the trafficking verification line at (866) 401-5510; or
 2. I-797 Notice of Action form with one of the following codes: T-2, T-3, T-4, T-5, or T-6; or
 3. I-94 arrival/departure record with one of the following codes: T-2, T-3, T-4, T-5, or T-6; or
 4. A foreign passport with a DHS-issued visa noting one of the following codes: T-2, T-3, T-4, T-5, or T-6; or
 5. I-766 Employment Authorization Document with one of the following codes: A16, C25
- F. Acceptable documentation for Iraqi and Afghan Special Immigrant Visa Recipients (SIVs):
1. Iraqi or Afghan passport with an immigrant visa stamp noting that the individual has been classified under Immigrant Visa Category SI1, SI2, SI3, SQ1, SQ2, SQ3, SW1, SW2, SW3, along with a DHS stamp or notation on passport or I-94 arrival/departure record showing date of admission; or
 2. Form I-551 noting one of the following Immigrant visa codes: SI6, SI7, SI8, SQ6, SQ7, SQ8, SW1, SW2, SW3; or
 3. DHS/CBP temporary Form I-551 Alien Documentation Identification and Telecommunication (ADIT) stamp; or
 4. DHS/USCIS temporary Form I-551 Alien Documentation Identification and Telecommunication (ADIT) stamp; or
 5. I-765 Employment Authorization Document receipt notice with one of the following codes: SQ1, SQ2, SQ3, SQ6, SQ7, SQ8, or
 6. I-766 Employment Authorization Document with one of the following codes: SQ1, SQ2, SQ3, SQ6, SQ7, SQ8.

- G. Acceptable documentation for Afghan Humanitarian Parolees:
1. I-94 arrival/departure record noting one of the following: “OAR”, “OAW”, “PAR”, “DT”, “PAROLED”, or Humanitarian Parole (per INA section 212(d)(5)(A)); or
 2. A foreign passport with DHS/CBP admission stamp noting “OAR, “OAW”, “PAR”, “DT”, “PAROLED”, or Humanitarian Parole (per INA section 212(d)(5)(A)); or
 3. Interim Notice Authorizing Parole (INAP) noting parole under INA 212(d)(5)(A); or
 4. I-765 Employment Authorization Document receipt notice with code C11; or
 5. I-766 Employment Authorization Document with the code C11.
- H. Acceptable documentation for Afghan Special Immigrant Parolees:
1. I-94 arrival/departure record noting SI or SQ parole (per section 602(B)(1) AAPA/Sec 1059(a) NDAA 2006); or
 2. I-765 Employment Authorization Document receipt notice with code C11; or
 3. I-766 Employment Authorization Document with code C11.
- I. Acceptable documentation for Afghan Special Immigrant Conditional Permanent Residents:
1. Foreign passport with Machine Readable Immigrant Visa (MRIV) with code CQ1, CQ2, or CQ3; or
 2. Foreign passport with DHS/CBP admission stamp noting that the individual has been classified under Immigrant Visa category CQ1, CQ2, or CQ3; or
 3. I-551 with an Immigrant Visa category code of CQ1, CQ2, or CQ3; or
 4. DHS/CBP temporary Form I-551 Alien Documentation Identification and Telecommunication (ADIT) stamp; or
 5. DHS/USCIS temporary Form I-551 Alien Documentation Identification and Telecommunication (ADIT) stamp; or
 6. I-765 Employment Authorization Document receipt notice with code C11; or

7. I-766 Employment Authorization Document with code C11.
- J. Acceptable documentation for Ukrainian Humanitarian Parolees:
1. I-94 arrival/departure record noting humanitarian parole (per INA section 212(d)(5) or 8 U.S.C. § 1182(d)(5)); or
 2. Foreign passport with DHS/CBP admission stamp noting one of the following: “DT”, “U4U”, or “UHP”; or
 3. I-765 Employment Authorization Document receipt notice with code C11; or
 4. I-766 Employment Authorization Document with code C11; or
 5. Any other immigration documentation with a notation of parole under INA § 212(d)(5); or
 6. Any one of the forms or stamps listed above for UHPs, and documentation of the last habitual residence in Ukraine, including Crimea.
- K. Unaccompanied Refugee Minors (URMs) who meet the definition above will have one of the following statuses: refugee, asylee, Cuban/Haitian entrant, victim of trafficking, Afghan Humanitarian Parolee, Ukrainian Humanitarian Parolee, Special Immigrant Juvenile Status (SIJS), U visa holder, or has legal permanent resident status that previously held one of the statuses mentioned.
1. If the URM has SIJS status, the documentation presented will be one of the following:
 - a. I-797, notice of action indicating status (i.e., evidence of approved I-360, or evidence of approved I-360 and approved I-485); or
 - b. Immigration Visa indicating SIJS status with SL class of admission; or
 - c. I-1551 indicating SIJS status with SL class of admission; and
 - d. Evidence that at the time a Dependency Order was issued, was either in the custody of the ORR Unaccompanied Children’s (UC) Program or receiving federal benefits or services as a Cuban/Haitian Entrant.
 2. If the URM has a U-visa, documentation presented will be one of the following:
 - a. I-797 notice of action indicating U status;
 - b. U-visa; or

- c. I-94 arrival/departure record showing admission in U status.
- 3. Please note: U-visa holders are not considered “qualified non-citizens” for federal public benefits. It does qualify the person to be “lawfully present” for potential state benefits.
- 4. If the URM is a Victim of Human Trafficking, they will have an Office of Trafficking in Persons (OTIP) letter.
- L. Acceptable documentation for Lawful Permanent Residents who previously held an eligible status:
 - 1. I-551 form (“green card”, permanent resident card or resident alien card) with one of the following class of admission codes: RE6, RE7, RE8, RE9, AS6, AS7, AS8, CH6, HA6, HB6, GA6, GA7, GA8, ST6, ST7, ST8, ST0, ST9, SI6, SI7, SI8, SQ6, SQ7, SQ8, AM-6, AM-7, AM-8.
 - 2. Foreign passport with an unexpired, temporary I-551 stamp and one of the following classes of admission codes: RE6, RE7, RE8, RE9, AS6, AS7, AS8, AM-1, AM-2, AM-3, GA6, GA7, GA8, SY6, SY7, SY8.

Individuals admitted to the United States who are classified by USCIS as "applicants for asylum" are not eligible for CRSP benefits. Once granted asylum, those individuals are eligible. The exception to this rule is Cuban and Haitian individuals applying for asylum; however, they must produce documents as described above.

CRSP follows the federal guidance on eligible populations, status, and documentation in the Office of Refugee Resettlement State Letter # 16-01, dated 10/02/2015, located on the federal government website at: <https://www.acf.hhs.gov/orr/policy-guidance/status-and-documentation-requirements-orr-refugee-resettlement-program>

No later editions or amendments are incorporated. Copies may be reviewed during normal business hours by contacting the State Refugee Coordinator in the Office of New Americans, Colorado Refugee Services Program, 707 17th St., Ste. 2700, Denver, Colorado 80202. If there is an eligibility question, please contact CRSP for assistance.

1.5. Refugee Medical Assistance (RMA)

1.5.1. Overview

Each individual member of a household that applies for medical assistance must first be screened for eligibility under the State Medicaid/Health First Colorado Program. If the individual is determined ineligible for Medicaid/Health First Colorado, then a determination of eligibility under the Refugee Medical Assistance (RMA) Program must be made. For Medicaid/Health First Colorado, the determination of what constitutes a “household” is based on 10 CCR 2505-10-8.100.4.E.

Any individual member of a household who is not eligible for Medicaid/Health First Colorado shall be considered for Refugee Medical Assistance (RMA). Per 45 CFR § 400.211(a), RMA is limited to a time period to be determined by the Director of the ORR each year, based on appropriated funds available for the fiscal year (refer to section 1.5 for verification of status for program eligibility). Please contact CRSP for applicable RMA eligibility time periods.

Persons applying for RMA will use the State-prescribed application for Medicaid/Health First Colorado. Applicants will first be screened for State Medicaid/Health First Colorado programs in accordance with the Colorado Department of Health Care Policy and Financing's Medical Assistance Manual (10 CCR 2505-10). In accordance with federal law, in providing RMA to ORR-eligible populations, Colorado will provide at least the same services in the same manner and to the same extent as under the state's Medicaid/Health First Colorado program.

1.5.2. Initial Refugee Medical Assistance Determination, Eligibility, and Definitions

Initial RMA income eligibility determination (where the applicant was not previously eligible for Medicaid/Health First Colorado) is based on two hundred percent (200%) of the federal poverty level.

- A. In determining eligibility for and receipt of RMA, the following are not considered: in-kind services and shelter provided to an applicant by a sponsor or local resettlement agency. Payments, such as refugee cash assistance, matching grant, or ORR Program of Initial Resettlement, received from the refugee resettlement agency are exempt from RMA income determinations.
- B. Determination of RMA eligibility will be based on an applicant's income on the date of application.
- C. Denial or termination of RCA does not cause denial or termination of RMA benefits.

ORR-eligible populations who are within the applicable RMA eligibility time period established by the ORR Director, and who lose their eligibility for Medicaid/Health First Colorado because of earnings from employment, will be transferred to RMA without an eligibility determination, and the two hundred percent (200%) of poverty rule shall not be applied. The increased earnings from employment shall not affect the ORR-eligible individual's continued RMA eligibility while within the applicable RMA eligibility period.

Copies of the Colorado Code of Regulations referenced are available for public inspection by contacting the Colorado State Refugee Coordinator during regular business hours at the Office of New Americans, Colorado Refugee Services Program, 707 17th St., Ste. 2700, Denver, CO 80202; or at a state publications depository library. No later editions or amendments are incorporated.

Editor's Notes

History

New rule eff. 06/02/2026.